

By the Lord Keeper : If a defendant in this Court be charged with several offences and is a delinquent in his defence, then all manner of proof is to be extended, with any kind of favourable and gracious interpretation, to charge and condemn him ; and this is the use and rule of this Court.

Delinquent
defendant
shall have
no favour

Also a use or rule observed in this Court [is], if the plaintiff has examined witnesses on interrogatories which are published, the defendant shall not re-examine them or other witnesses on new interrogatories, but on those first ones only.

No re-exami-
nation on
new interro-
gatories

In Camera Stellata, coram Consilio ibidem, Mercurij, 12 Maij, 1602. Elizab. 44. Tr^{no} Pasche.¹

[p. 98]
1602
May 12

The same cause between Sir Henry Winston and Sir Thomas Throckmorton.² It was opened now that in Michaelmas Term, 43 and 44 Eliz., Sir Henry Winston was plaintiff against Sir Thomas Throckmorton, who was sentenced and fined 1000 marks for a fraudulent deed, pronounced by two verdicts to be fraudulent ; and after those verdicts, the said Sir Thomas bargained for this deed secretly and subtilly that he had not notice of this and that he purchased this and to whom the assignment was made. And in Hilary Term, 44 Eliz., Sir Thomas Throckmorton was plaintiff against the said Sir Henry, who was fined £1000 for 'intemperancye et batteryes' as Justice of the Peace, in resisting warrants, and principally for procuring an indictment for felony and burglary to be made and found petty larceny.

WINSTON
v.
THROCK-
MORTON
—
The plaintiff
and de-
fendant
formerly
sentenced in
this court
Fine of 1000
marks
against Sir
Thomas for
fraud

Fine of
1000l.
against
Winston,
Knight, for
altering an
indictment

The Judges resolved that the offence of the said Sir Thomas was extortion and not excepted in the pardons of 35 or 39 [Elizabeth], and that he was a justice of oyer and terminer in this county.³

Resolution
of the judges
as to ex-
tortion

The second offence with which they charged the said Sir Thomas was that he by his bailiff seized the sheep of one

Defendant
discharged
of this
offence

¹ Ten Councillors and Judges were present.

² See *ante*, p. 134.

³ These points had been referred to them ; see *ante*, p. 136.